



Republic of the Philippines
Province of Surigao del Sur
MUNICIPALITY OF CARMEN

POSTED:
DATE: 10/16 - 2024
BY: **MA. JULINA B. JUTILO**
SB SECRETARY

TANGGAPAN NG SANGGUNIANG BAYAN

EXCERPTS FROM THE MINUTES OF THE 99TH REGULAR SESSION OF THE 13TH SANGGUNIANG BAYAN
OF CARMEN, SURIGAO DEL SUR HELD AT THE MUNICIPAL SESSION HALL ON OCTOBER 15, 2024

PRESENT:

Hon. Harvey S. Manawatao Municipal Vice-Mayor/
Presiding Officer

REGULAR SANGGUNIANG BAYAN MEMBERS:

Hon. Carlos S. Estrada		SB Member
Hon. Renato A. Calañas		SB Member
Hon. Michael C. Escuyos		SB Member
Hon. Carmelito E. Valeroso		SB Member
Hon. Elvie U. Ohao		SB Member
Hon. Tanie A. Quillano		SB Member

EX-OFFICIO MEMBER:

Hon. Jeff Anthony D. Beloria SK Federation President

ON OFFICIAL BUSINESS:

REGULAR SANGGUNIANG BAYAN MEMBERS:

Hon. Nilo S. Bigno		SB Member
Hon. Rencio P. Valeroso		SB Member

ON LEAVE:

EX-OFFICIO MEMBER:

Hon. Blandena V. Sugian ABC President

SECTORAL REPRESENTATIVE:

Hon. Ricardo S. Iligan IP Mandatory Representative

ORDINANCE NO. 24
Series of 2024

**“AN ORDINANCE ON COLLECTION OF CORRESPONDING BARANGAY CLEARANCE FEE IN THE
APPLICATION FOR ANY BUSINESS-RELATED TRANSACTIONS”**

Author : Hon. Carmelito E. Valeroso

Enacted: All Members present

EXPLANATORY NOTE

To provide a more efficient and effective revenue collection in the Municipality of Carmen,
Province of Surigao del Sur and to promote a friendlier atmosphere for tax payers and investors, the

process of business registration needs to be streamlined/ simplified.

For the entrepreneurs not to suffer from red tape and consume more time in business transactions when the regulations are simple and transparent.

Republic Act (RA) 11032 otherwise known as "An Act promoting Ease of Doing Business and Efficient Delivery of Government Services was signed into law, seek to make the process of putting up and running a business in the Philippines easier and more efficient.

Section 11 (f) of the same Act, provides that the "Barangay Clearance and permits related to doing business shall be applied, issued and collected at the Municipality in accordance with the prescribed processing time of the said act. Provided further, that the share in the collection shall be remitted to the respective barangays.

All eight (8) Barangays in the Municipality of Carmen, Province of Surigao del Sur will enact ordinances to authorize the Municipality to issue Barangay Clearance Fee in the application for any business-related transactions subject to the remittance of the aforesaid fees to the barangay and the conditions hereunder.

BE IT ORDAINED, by the Sangguniang Bayan of Carmen, Surigao del Sur, in a session assembled, that:

Section 1. Coverage- This policy applies only to the issuance of Barangay Clearance for business permit and locational clearance (as a requirement for the issuance of building permit) at the Municipality. Other clearances for other purposes shall still be obtained at the Barangay.

This Circular shall cover all Municipal Mayors, Punong Barangays, concerned Local Officials, DILG Regional Directors and BARMM Minister of Local Government and all others concerned.

Section 2. Definition of Terms- The words and phrases used in this ordinance are hereby defined as follows:

Barangay Clearance – refers to any and all documents issued by the Barangays with or without corresponding fees as defined in their ordinances relative to or in relation to the issuance of business permit the municipality or any other permit as may be required. (IRR of RA 11032).

Barangay Clearance Fees – is an amount imposed by the barangays after having a Local Finance Toolkit in the amount of Three Hundred Pesos (Php300.00) through an ordinance and collected by the Municipality in relation to the issuance of business permit in the Municipality.

Business Permit – is a document that must be secured from the municipal government usually through its Business Permits and Licensing Office (BPLO), for a business to legally operate in the locality. (IRR of RA 11032).

Section 3. Authority to Collect Barangay Clearance Fee of Business-Related Transactions- The Municipality of Carmen is given the authority to collect Barangay Clearance Fee subject to the remittance to the subject Barangay.

Section 4. Rate of Barangay Clearance Fee to be collected- The rate of Barangay Clearance Fee to be collected by the Municipality for the issuance clearance shall be computed in accordance with the subject Barangay Revenue Ordinance herein attached as "Annex A," and made as an integral part hereof.



Section 5. Barangay Clearance Signatory- Electronic Signature of Punong Barangay concern shall appear in all Barangay Clearance issued.

Section 6. Reporting and Remittance- The Municipality shall remit the Barangay Clearance Fee collected to the subject Barangay not later than seven (7) working days of the ensuing month with the list of the issued Building and Business Permit.

Section 7. Separability Clause- If for any reason, a part of this Ordinance is declared illegal or invalid, other parts or provision hereof which are not affected thereby shall remain valid and in full force and effect.

Section 8. Repealing Clause- All previous Ordinance and rules/regulations which are inconsistent with the provisions of this Ordinance are hereby deemed, modified or repealed accordingly.

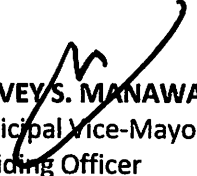
Section 9. Effectivity Clause- This Ordinance shall take effect fifteen (15) days after its posting in three (3) conspicuous places in the municipality.

ENACTED this 15th day of October, 2024 at Carmen, Surigao del Sur.

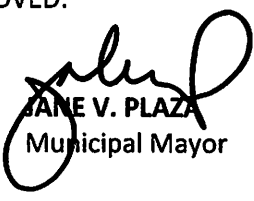
I HEREBY ATTEST to the correctness of the foregoing ordinance


MA. JULINA T. BORDA- JUTILO, LLB., J.D.
Secretary to the Sangguniang Bayan

CERTIFIED CORRECT:


HARVEY S. MANAWATAO
Municipal Vice-Mayor/
Presiding Officer

APPROVED:


JANE V. PLAZA
Municipal Mayor